

25CHCV01966 25CHCV01966

County: los-angeles

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Hearing date: 2026-09-08

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DEFENDANT CLEARVIEW REAL ESTATE HOLDINGS LLC'S DEMURRER
TO COMPLAINT

Motion filed on March 17, 2026.

MOVING PARTY: Defendant Clearview Real Estate Holdings LLC

RESPONDING PARTY: Plaintiff Amir Edwards

NOTICE: OK.

RELIEF REQUESTED: Defendant Clearview Real Estate Holdings LLC seeks an order sustaining its demurrer to the first cause of action for intentional misrepresentation, second cause of action for negligent misrepresentation, third cause of action for abuse of process, fourth cause of action for civil conspiracy, and fifth cause of action for intentional infliction of emotional distress.

RULING: Overruled as moot.

BACKGROUND

On June 9, 2025, Amir Edwards (Plaintiff) filed the Complaint against Jaswinder Dhinsa (Dhinsa), Clearview Real Estate Holdings LLC (Clearview), and Does 1 through 10.

On March 17, 2026, Clearview filed the present demurrer to the Complaint (Reservation No. 053874158499). The demurrer challenges all five causes of action alleged in the original Complaint. The hearing was originally set for April 22, 2026. On March 17, 2026, the Court continued the hearing to September 8, 2026. Clearview filed notice of the continuance on March 18, 2026.

On April 22, 2026, Dhinsa filed a separate demurrer to the original Complaint (Reservation No. 863287606357) which was set for hearing on July 13, 2026.

On May 6, 2026, Plaintiff filed the First Amended Complaint.

On July 13, 2026, the Court overruled Dhinsa's April 22, 2026 demurrer as moot. The Court ordered Defendants to file and serve a responsive pleading to the First Amended Complaint within 30 days.

On August 11, 2026, Defendants filed a separate demurrer to the First Amended Complaint (Reservation No. 254274427080). That demurrer is set for hearing on November 30, 2026.

DISCUSSION

"A party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike." (Code Civ. Proc., § 472, subd. (a).) When plaintiff files an amended complaint after a demurrer is filed, but before it is decided, the demurrer must be overruled as moot. (JKC3H8 v. Colton (2013) 221 Cal.App.4th 468, 477.)

Here, Clearview demurs to Plaintiff's original Complaint. Plaintiff filed the First Amended Complaint on May 6, 2026, after the demurrer was filed and before the September 8, 2026 hearing. The First Amended Complaint supersedes the original Complaint and is now the operative pleading. Clearview's demurrer no longer challenges the operative pleading. The demurrer

is moot.

CONCLUSION

Clearview's March 17, 2026 demurrer (Reservation No. 053874158499) is overruled as moot.

Defendants' August 11, 2026 (Reservation No. 254274427080) remains set for hearing on November 30, 2026.